

File No.: EXP202311595

RESOLUTION OF

PROCEDURE OF WARNING

Of the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data on July 27, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) that the respondent has a video surveillance system in their home with cameras that could capture the public road, as well as cameras aimed at the windows of the complainant's home, all without authorization.”

Images of a small device installed on a wall are provided, without date and time of capture (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The respondent replied on 05/10/23 and 24/10/23 to the notification from this agency confirming the installation of a short-range camera system, aimed at protecting the main accesses to their home, also providing a photograph of the information sign placed on a wall of the property.

FOURTH: On October 27, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On May 21, 2024, the Director of the Spanish Agency for the Protection of Data decided to initiate a warning procedure against the respondent for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The notification of the aforementioned initiation agreement was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), being notified in due time and form as recorded in the administrative file.

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SEVENTH: On 05/06/24, this Agency received a written statement regarding the referenced facts: “I allege the replacement of the duly completed information sign (...), I also have the information in written format to provide to the interested party if necessary.”

In light of all that has transpired, the following facts are considered proven by the Spanish Agency for the Protection of Data in this procedure,

PROVEN FACTS

First. The facts are specified in the complaint dated 27/07/23, which states:

“(…) that the respondent has a video surveillance system in their home with cameras that could capture the public road, as well as cameras aimed at the windows of the complainant's home, all without authorization.”

Second. It is established that Mrs. B.B.B. is the main responsible party, who does not deny being the main responsible for the installation of the video surveillance system.

Third. It is established that the information sign indicating the monitored area presented "irregularities," which have been corrected following the notification of the Initiation Agreement.

Fourth. It is stated by the respondent that they have forms available to clients, although they have not provided copies of such documents for analysis by this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

In the present case, we proceed to examine the claim dated 27/07/23 through which the alleged "irregularities" in the video surveillance system installed by the respondent are reported.

Upon analyzing the initial writings of the respondent, it is observed that the informational sign installed does not comply with the current regulations, as it merely informs that it is a .

The facts are specified in the defective information of the installed system, given that the cameras subject to the claim have been shown to be oriented towards the private area of the respondent.

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
- e) the recipients or categories of recipients of the personal data, if any;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing,

as well as the right to data portability;

c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the provision of personal data is a statutory or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which the data were collected, it shall provide the data subject prior to that further processing with information on that other purpose and any pertinent additional information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

III

The image of a person, insofar as it identifies or can identify the person, constitutes a that may be subject to processing for various purposes.

Another obligation arising from the use of video surveillance for security purposes, in relation to data protection, is to comply with the right to information, through an informational sign.

Article 22(4) of the LOPDGDD states:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informational device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informational device."

IV

Classification and qualification of the infringement

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In accordance with the "evidence" available in the warning procedure, it is considered that the respondent has a facility that does not comply with the current regulations on data protection regarding the informational signage of the video surveillance system and the availability of forms for customers.

The above facts constitute a violation of the content of Article 13 of the GDPR, previously transcribed.

Article 83.5 of the GDPR states: "Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of the data subjects under Articles 12 to 22;

Article 72, paragraph 1 of the LOPDGDD (Organic Law 3/2018, December 5) regarding the statute of limitations for very serious violations "shall expire after three years" and in particular the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law (...).

V

Having analyzed the allegations of the respondent, it should be noted that they have a video surveillance system, and the informational sign is not legally compliant; however, due to the processing of this procedure, they have proceeded to correct it, so no measures should be ordered in this regard.

It is reminded that establishments offering services to the public must have an informational form(s) available to their customers, so that in the event of an inspection by the competent authority, the absence of these may lead to the initiation of a new sanctioning procedure, where the recommendations of this Agency will be taken into account for the imposition of a monetary fine. Guidelines are available on the website of this AEPD www.aepd.es, and it must be clear who is responsible for the images, as well as providing a means to exercise rights at an effective and free address for this purpose.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for a violation of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, without imposing any measures.

SECOND: TO NOTIFY this resolution to Ms. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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